

Court No. - 21

Case :- WRIT - C No. - 15987 of 2023

Petitioner :- Smt. Sheela Devi And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ganesh Shanker Srivastava, Vinod Kumar Maurya

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Kartikeya Saran

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. The petitioners have challenged the notice of provisional assessment issued by the respondent-Electricity Department, in a case of theft of electricity.
2. The notice of provisional assessment grants fifteen days time to the petitioners to file objection. The petitioners have already filed objection against the same and order of final assessment is yet to be passed.
3. No good ground is made out to interfere with the notice of provisional assessment at this stage.
4. The petition is disposed of with direction to the respondent-Authority to finalize the assessment proceedings expeditiously, strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005 and dependent upon the outcome of the same, restore the electric connection of the petitioner's premises.
5. The order has been passed in the presence of Sri Abhishek Srivastava, learned counsel for the respondent-Electricity Department.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 11.5.2023

Jaideep/-